

25CHCV01909 25CHCV01909

County: los-angeles

Division: Civil Law and Motion

Department: F49

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Case Number: 25CHCV01909 Hearing Date: September 23, 2026 Dept: F49

Dept. F49

Date: 9/23/26

Case Name: Crager Cougar; Atticus Cougar-Costain; Sara Graham-Costain; and Justin Hill vs. Sam & Mar Express Inc.; Vahan Hovhannisyan; and Does 1-60

Case No. 25CHCV01909

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 23, 2026

PETITION FOR
APPROVAL OF COMPROMISE OF CLAIM

Los Angeles Superior
Court Case No. 25CHCV01909

Petition filed: 8/26/26

MOVING PARTY: Claimant Atticus Cougar-Costain, by
and through his parent and Guardian ad Litem, Sara Graham-Costain

RESPONDING PARTY: None

NOTICE: Incomplete

RELIEF REQUESTED: Petitioner seeks the Court's approval of the settlement that her disabled son, Plaintiff and Claimant Atticus Couger-Costain, reached with Defendant.

TENTATIVE RULING: The Petition is CONTINUED.

BACKGROUND

This action arises from a motor vehicle accident that occurred on the SR-14 freeway in Santa Clarita, California on January 4, 2025. On June 3, 2025, Plaintiffs Crager Couger, Atticus Couger-Costain ("Couger-Costain"), by and through his parent and Guardian ad Litem, Sara Graham-Costain ("Graham-Costain"), and Justin Hill (collectively, "Plaintiffs") initiated this action. On June 16, 2025, Plaintiffs filed the operative First Amended Complaint against Defendants Sam & Mar Express Inc., Vahan Hovhannisyan, and Does 1 through 60, alleging general and motor vehicle negligence.

On March 12, 2026, Plaintiffs filed a Notice of Settlement of Entire Case.

On August 26, 2026, Graham-Costain filed the instant Petition for Approval of Compromise of Claim on behalf of Couger-Costain.

No opposition or objection has been filed.

ANALYSIS

Rule/Requirement/Component

Application

Comments

Claimant (person with disability)

Atticus Cougar-Costain

DOB: 1/3/00, age: 26

Guardian ad Litem¿

Sara Graham-Costain

Parent, GAL

status granted 6/17/26

Settlement (Total)¿

\$918,083.62 (MC-350, ¶ 10a)¿¿

Injuries¿

Injuries to the head, neck, upper back, left shoulder,
right shoulder, mid back, and lower back. (MC-350, ¶ 6)

¿

Medical treatment received?¿

Claimant underwent medical evaluations and treatment.
(MC-350, ¶ 7.)

¿

Completely healed of injuries?¿

Claimant continues to have lumbar spinal pain and
discomfort. (MC-350, ¶ 8b, Attach. 8)¿

Injuries

determined to require lifelong pain management treatment. (MC-350, Attach. 8)

Medical Expenses Incurred (Total)¿

\$427,689.83 (MC-350 ¶ 12a(1))¿

Medical Bills (Documentation)¿

Itemized summary provided.

Outstanding medical payments owed from proceeds¿

\$50,425.00 (MC-350, ¶ 12a(4))¿

Amount does not
include the unresolved \$120,615.00 lien of David Cassius, M.D.

Provider Liens (Documentation)¿

\$0.00 (MC-350,
¶ 12a(5))

Petition states
that David Cassius, M.D. has an unresolved lien in the amount of \$120,615.00.

Negotiated Lien Reductions?¿

\$219,768.08
(MC-350, ¶ 12a(3))

Documentation of lien reductions¿

Itemized
summary provided.

¿

Attorney Fees¿

\$275,425.09 (30% of \$918,083.62) (MC-350, ¶ 13b)

The Court finds
the requested fees to be reasonable.

Declaration of fees and copy of retainer? (Cal. Rules of Court, rule 7.955(b).)¿

Yes. (MC-350, Attachs. 13a, 17a)

Litigation Costs¿

\$27,150.36. (MC-350, ¶ 13b)¿

Are the costs itemized and reasonable?¿

Yes. (MC-350, ¶ 13b, Attach. 13a)

Total to be paid to claimant

\$444,468.17 (MC-350, ¶ 15)

Blocked account?¿

No. (MC-350, ¶ 18(b)(5).)

\$143,014.79 to be invested in a single-premium deferred annuity, with guaranteed annual payments of \$6,416.06, beginning 10/15/28 and for a maximum of 52 years.

(MC-350, ¶ 18b(3).)

\$301,453.38 to be paid to the trustee of a special needs trust established under Probate Code section 3604 for the benefit of Claimant. (MC-350, ¶ 18b(4))

Proposed order to approve compromise is congruent with Petition?¿

No.
(MC-351.)

Total

allowance for fees and expenses and total balance available for Claimant differ between petition and proposed order.

Proposed order to deposit funds is congruent with
Petition? ¿

N/A.

Disposition ¿

CONTINUED.

¿

After thoroughly reviewing the Petition and supporting documents, the Court identifies the following discrepancies:

There is a discrepancy in the total amounts payable for expenses and fees and available to Couger-Costain between the Petition and the proposed Order.

The Petition proposes funding a special needs trust for Couger-Costain's benefit but does not meet all requirements under the Probate Code and local rules.

First, the Petition does not include proof of service on relevant state agencies as required. (Prob. Code, § 3602, subd. (f) ["Notice of the time and place of hearing on a petition under subdivision (d), and a copy of the petition, shall be delivered pursuant to Section 1215 to the State Director of Health Care Services, the Director of State Hospitals, and the Director of Developmental Services at the office of each director in Sacramento at least 15 days before the hearing."].) Notice is therefore incomplete.

Next, no briefing has been provided regarding trust issues, including factual information specifically intended to support the findings the Court must make pursuant to Probate Code section 3604, subdivision (b), and briefing regarding the necessity of certain provisions in the trust instrument, discussed more fully below.

The trust instrument contains an incomplete statement pertaining the sale of a personal residence pursuant to LASC local rule 4.116(b)(3). (MC-350, Attach. 18b(4), Exh. 1, § 7.02.) Language is required stating that any sales of a personal residence of the beneficiary “must be returned to the court for confirmation” pursuant to Probate Code sections 10300 et seq.

The trust instrument includes the following provisions that are beyond what is fundamental to the approval and funding of a trust, and the inclusion of these additional provisions has not been briefed: (1) section 7.01(h), allowing the trustee to take fees on an interim periodic basis on account; (2) section 7.01(i), allowing the attorney for the trustee to take fees on an interim periodic basis on account; and (3) section 7.01(j), allowing the trust advisory committee to take fees on an interim periodic basis on account. Moreover, no other mention is made in the trust instrument of an “advisory committee.”

The trust instrument refers at section 7.02 to “If ... the Court has approved investments in mutual funds according to Probate Code § 2574(c),” but does not directly request that the Court approve such investments. Reference to mutual funds should be removed unless Petitioner intends to request—and brief—their inclusion in the trust instrument.

The Petition does not request or calculate a specific bond amount. Bond is required pursuant to Probate Code sections 2320 and 15602 and Court Rule 7.903(c)(5). Further, counsel's declaration states the intention that bond not be required, which is improper unless the trustee is a corporate fiduciary or trust company. (MC-350, Attach. 18b(4).)

The proposed Order is missing the following general trust orders:

(1)

The trust terms are not included as required by LASC rule 4.115(c)(2).

(2)

The required Probate Code section 3604, subdivision (b) findings are not made in the Order.

(3)

The Order does not
provide for the Court's continuing jurisdiction and supervision over the trust.

(4)

The Order does not
address the request that the trustee, attorney, and trust advisory committee
take fees on an interim periodic basis on account, if applicable.

(5)

The Order does not
address the bond.

(6)

The Order does not
provide a deadline for the filing of a Notice of Commencement of Proceedings
for a Court Supervised Trust (LASC Form PRO 044).

(7)

The Order does not
provide a deadline for the trustee's first accounting.

Based on the foregoing, the Court CONTINUES the Petition to
allow Petitioner an opportunity to address the noted discrepancies.

CONCLUSION

The Petition for Approval of Compromise of Claim, filed by Claimant Atticus Couger-Costain, by and through his
Guardian ad Litem, Sara Graham-Costain, is CONTINUED.

Moving party to give notice.